

Plaintiffs' counsel should be prepared to discuss these defects in the opposing papers at the hearing.

1. Makhail

Demurrer

The court **OVERRULES** Defendants PAUL MAKHAIL's uncertainty demurrer to the Third Amended Complaint ("TAC") filed by Plaintiffs DOUGLAS WONG and JENNIFER JING. (Code Civ. Proc., § 430.10(f).)

Makhail argues that this court previously found that the Second Amended Complaint ("SAC") was "uncertain", and on this basis, Makhail now argues that the TAC "did not resolve the uncertainty." (Opp'n Br., 3:20-25.)

Not so. Makhail previously demurred *generally* to the SAC and the demurrer was *overruled*. (ROA 312.) Makhail did *not* previously demur to the SAC on the ground of uncertainty. (Id.) Piecemeal demurrers are not permitted. (See Code Civ. Proc., § 430.41(b).)

Further, this court did not find that the SAC was "uncertain". Again, Makhail's demurrer was overruled. It was overruled after Makhail argued, but failed to show, that the purported publication was public (versus private). The court stated, "The court cannot determine at this pleading stage that the information was public, and not private, or vice versa. Neither side cites authority sufficient to support their argument. And with the demurrer here, the court must read the SAC liberally and in the light most favorable to Plaintiffs." (2/10/26 Minute Order [ROA 369], p. 2.)

Nor did co-defendants demur to the SAC on the ground of uncertainty. (ROA 299.) While the court sustained the general demurrer of co-defendants to the SAC, the court did so on the ground that the SAC contains insufficient facts "to show wrongdoing by either Powerstone or Mourer." (ROA 369, p. 4.)

Makhail's demurrer is OVERRULED.

Motion to Strike

The court **DENIES** Defendant PAUL MAKHAIL's motion to strike portions of the Third Amended Complaint ("TAC") filed by Plaintiffs DOUGLAS WONG and JENNIFER JING.

Makhail moves to strike the following from the TAC:

"Although in Plaintiffs' original Complaint, there were allegations about an incident in June 2022 in a paragraph that preceded the allegations about the poster being hung, no date was given as to when a 'letter' was posted in the guardhouse. The Complaint also alleged that there was not just one letter posted in the guardhouse but two."

(TAC, p. 6, ¶ 30, lines 3-6.)

Makhail argues that this paragraph exceeds the scope of this court's ruling permitting leave to amend. (See 2/10/26 Order.)

The court disagrees. The paragraph appears to address a contradiction raised by co-defendants in their demurrer to the SAC. (See 2/10/26 Minute Order, at p. 4.) As such, the portion sought to be stricken does not exceed the scope of the leave previously granted.

In sum, the court DENIES Makhail's motion to strike.

Defendant Makhail SHALL file and serve an Answer to the TAC within 10 days. (Cal. Rules of Ct., rule 3.1320(g).)

Plaintiffs to give notice.

2. Powerstone Property and Mourer

The court **SUSTAINS** Defendants POWERSTONE PROPERTY MANAGEMENT and SCOTT MOURER's (collectively, "Defendants") demurrer to the Third Amended Complaint ("TAC") filed by Plaintiffs DOUGLAS WONG and JENNIFER